



MoCRA checklist for brands outside the US

Work through these in order before your first US shipment.

Step	What to do	Done
1. Product route	Confirm the product is a cosmetic, not an OTC drug (sunscreens, anti-dandruff, acne, antiperspirants are OTC drugs)	☐
2. US Agent	Appoint a US Agent for each facility outside the US	☐
3. Facility registration	Register each manufacturing or processing facility with FDA; renew every two years	☐
4. Product listing	List each product with its ingredients; update every year	☐
5. Safety substantiation	Keep records showing each product is safe under customary use	☐
6. Adverse events	Set up a process to report serious adverse events to FDA within 15 business days	☐
7. Labelling	Add a US contact for adverse event reports to the label	☐
8. Small business check	Check whether the small business exemption applies, and which products it excludes	☐

General information, not legal advice. Source: FDA, Modernization of Cosmetics Regulation Act of 2022. Need help? cosmeticsciencelab.com/contact.html